



Forthcoming judgments and decisions

The European Court of Human Rights will be notifying in writing seven judgments on Tuesday 21 March 2017 and 32 judgments and / or decisions on Thursday 23 March 2017.

Press releases and texts of the judgments and decisions will be available at 10 a.m. (local time) on the Court's Internet site (www.echr.coe.int)

Tuesday 21 March 2017

[Bujak v. Poland \(application no. 686/12\)](#)

The applicant, Sławomir Bujak, is a Polish national who was born in 1954 and lives in Sarbice Pierwsze (Poland). The case concerns his complaint about inadequate medical care in prison for serious neurological and orthopaedic problems following a car accident.

Following his extradition from New Zealand to Poland on theft charges, Mr Bujak was arrested in March 2010 and placed in detention on remand in view of the gravity of the offences against him and the risk that he might abscond; notably, he did not have a permanent place of residence in Poland and he had already been in hiding from the police in New Zealand, hence the necessity to extradite him. Mr Bujak's appeals – on health grounds – against the ensuing decisions to extend his detention were subsequently dismissed; the courts considered that he could be treated in detention. However, in October 2011 doctors found that Mr Bujak's detention was problematic as he needed surgery and a month later that further detention might pose a serious danger to his health or even life. He was therefore released in December 2011 in order to have surgery. The criminal proceedings are apparently still pending against him.

From the beginning of his detention Mr Bujak regularly consulted various doctors, was prescribed a hard mattress, crutches, then a wheelchair. He alleges, however, that he never received the mattress, that the wheelchair was unsafe for use and that the Kielce Remand Centre in which he had been detained from March 2010 to February 2011 and then from April to December 2011 had not been adapted to the needs of disabled. He claims in particular that, because of the inadequacy of his medical care in detention, his health had seriously deteriorated and he had had to suffer the humiliation of being assisted by other inmates, in breach of Article 3 (prohibition of inhuman or degrading treatment) of the European Convention on Human Rights. Further relying on Article 5 § 3 (right to liberty and security), he also complains about the excessive length – one year and nine months – of his pre-trial detention.

[Michał Korgul v. Poland \(no. 36140/11\)](#)

The applicant, Michał Korgul, is a Polish national who was born in 1987 and is detained in Lublin (Poland). The case essentially concerns his complaint about the high-security measures to which he was subjected in the context of criminal proceedings brought against him for armed robbery.

Mr Korgul was classified as a dangerous detainee and placed under a high-security regime for two periods covering nearly two years, in 2011 during his detention on remand, and then from 2012 to 2013 following his conviction and transfer to a prison. These security measures were applied and extended on the ground that he had been aggressive and threatening to prison guards. The measures were lifted in November 2011 and in March 2013 when the authorities considered that his behaviour had improved and that he no longer posed a threat to security.

Relying on Article 3 (prohibition of inhuman or degrading treatment), Mr Korgul complains about the special high-security measures to which he was subjected during his classification as a dangerous detainee, which had notably involved his segregation from the prison community, his shackling and intrusive strip searches whenever he left or entered his cell. He also complains under Article 1 of Protocol No. 1 (protection of property) that half of a sum of money given to him by his family had been placed in a special savings account to which he had no access prior to his release.

[Porowski v. Poland \(no. 34458/03\)](#)

The applicant, Dariusz Porowski, is a Polish national who was born in 1964 and lives in Otwock (Poland). He makes numerous complaints relating to criminal proceedings against him.

In 2000 Mr Porowski was arrested and charged in two separate sets of proceedings. He was detained on remand in relation to both of them, by two separate measures imposed independently for each of the two cases. In relation to the first set of proceedings, after an initial conviction was quashed, Mr Porowski was tried and convicted again in November 2003 and sentenced to five years' imprisonment. Due to his time served on remand, his imprisonment in relation to the first proceedings ended in July 2005. In relation to the second set of proceedings, the courts convicted Mr Porowski and then quashed his conviction on appeal, before convicting him again and quashing his conviction again. Mr Porowski was finally convicted again in October 2009 and sentenced to six years' imprisonment. For most of the time prior to this final conviction, Mr Porowski was detained on remand. However, throughout the proceedings the courts held that the time he had spent in detention between July 2000 and July 2005 was relevant only to the first case. This meant that time spent in detention in relation to the second set of proceedings only started in July 2005. The lower courts therefore repeatedly extended Mr Porowski's detention on remand, on grounds that – according to domestic legislation – could only be used if a person had been detained for less than two years.

Relying on Article 5 (right to liberty and security), Mr Porowski complains that his detention on remand in respect of the second case was unlawful, as it should have been calculated irrespective of his concurrent detention in relation to the first set of proceedings, and therefore should not have been ordered merely by the lower courts, and on the basis of grounds that were only applicable where a person had been detained for less than two years. He also complains that the domestic courts imposed and extended his detention without proper reasoning given the context of the proceedings, and without relevant and sufficient grounds. Furthermore, Mr Porowski claims that his correspondence with his lawyer and the Court was monitored by the authorities, in violation of Article 8 (right to respect for the home and the correspondence). Finally, he relies on Article 6 (right to a fair trial) to claim that both the proceedings against him, and criminal proceedings against prison staff which were instigated after he had complained about their behaviour, were unfair and lasted an unreasonably long amount of time.

[Ana Ioniță v. Romania \(no. 30655/09\)](#)

The applicant, Ana Ioniță, is a Romanian national who was born in 1954 and lives in Piatra Neamț. She is a public notary and her professional authority imposed various disciplinary sanctions on her. She challenged them claiming a breach of her freedom of expression.

In January 2006 the disciplinary board of the UNNPR (National Union of Romanian Public Notaries) issued Ms Ioniță with a reprimand for anomalies in her work and failure to pay professional tax. In July 2006 she was suspended from her duties. In August 2006, after paying the sums due, Ms Ioniță was reinstated by order of the Ministry of Justice.

In September 2006, while taking part in a televised debate, Ms Ioniță explained on air that she was going on a hunger strike because of her disagreement with the professional tax levied by the UNNPR. She criticised the running of the UNNPR and the Chamber of Notaries of Bacău (CNB), of

which she was a member. In October 2006 the CNB's executive board decided to open disciplinary proceedings against the applicant. In a decision of January 2007, the disciplinary board of the UNNPR ordered Ms Ioniță's suspension from her duties as notary for a period of four months on the ground that her statements on television had impugned the honour and professional integrity of the profession of notary, and had harmed the image of the UNNPR and the CNB. Ms Ioniță challenged the decision before the UNNPR board, which rejected her complaint. She appealed on points of law and the High Court of Cassation and Justice dismissed her appeal.

Ms Ioniță complains that there has been a breach of her right to freedom of expression under Article 10 of the Convention.

[Kargashin and Others v. Russia \(nos. 66757/14, 73424/14, 5138/15, 5678/15, 8055/15, 9234/15, and 11460/15\)](#)

[Mozharov and Others v. Russia \(nos. 16401/12, 67528/14, 74106/14, 77730/14, 77733/14, 77916/14, 6141/15, 8376/15, 9166/15, and 12321/15\)](#)

The applicants are 17 Russian nationals who complain about the inadequate conditions of their detention in which they have been or were held for periods ranging from 10 months to more than nine years. Relying on Article 3 (prohibition of inhuman or degrading treatment), they essentially complain about overcrowding, most of them having to share a bed with other inmates and take turns in sleeping. They also all mostly allege that they are/were detained in cold buildings infested with rats, mice and various bugs, with lack of fresh air, poor food and little or no hot water. Some of the applicants have had to share such unsanitary conditions with inmates suffering from serious illnesses, such as hepatitis and tuberculosis. Lastly, all but one of the applicants also complain about the lack of an effective remedy with which they could complain about such conditions of detention, in breach of Article 13 (right to an effective remedy).

[Mitrović v. Serbia \(no. 52142/12\)](#)

The applicant, Miladin Mitrović, now deceased, was a Bosnia and Herzegovina national who was born in 1943 and lived in Sremska Mitrovica (Serbia). He complained that he had been subjected to unlawful imprisonment in Serbia between July 2010 and November 2012.

Back in 1994, Mr Mitrović was sentenced to 8 years' imprisonment for murder by the courts of the "Republic of Serbian Krajina". This was an internationally unrecognised self-proclaimed entity established on the territory of the Republic of Croatia during the wars in the former Yugoslavia. Mr Mitrović was imprisoned within the territory during the conflict, after which he was transferred to a prison in Serbia. However, in 1999 he was released for 10 days' annual leave, and failed to return to prison. Mr Mitrović was re-arrested in July 2010 when he attempted to enter Serbia from Croatia, and sent to a Serbian prison to serve the remainder of his sentence. He lodged an appeal to the Constitutional Court to challenge the lawfulness of his imprisonment, and also civil proceedings to claim compensation for unlawful imprisonment – both of which were dismissed. Mr Mitrović was released in November 2012 following a pardon from the President of the Republic of Serbia. He died in October 2014.

Prior to his death, Mr Mitrović complained to the European Court of Human Rights that he had been imprisoned on the basis of a judgment of a court of an internationally unrecognised entity, and that this had violated Article 5 § 1 (a) (right to liberty and security). His claim is continued by his heirs.

Thursday 23 March 2017

[Genov v. Bulgaria \(no. 40524/08\)](#)

The applicant, Asen Georgiev Genov, is a Bulgarian national, who was born in 1969 and lives in Sofia. The case concerns the authorities' refusal to register the new religious association of which Mr Genov was the chairman.

In January 2007, in Sofia, seven people decided to set up a new religious association, the International Society for Krishna Consciousness (ISKCON) – Sofia, Nadezhda. Mr Genov was appointed as chairman. A Bulgarian branch of ISKCON, based in India, had been registered as a religious organisation in 1991 and re-registered in March 2003. Mr Genov applied to the court for registration of the new association. The Department for Religious Matters observed that, in its beliefs and rites, the new association could not be distinguished from the one already registered. In March 2007 the court rejected Mr Genov's application, finding that the name of the new association resembled that of the association which already existed, that the constitution was identical and that the stated aim of the new association to change the organisation of the already registered association created a risk of a schism among its members. Mr Genov appealed and the Court of Appeal upheld the judgment. Mr Genov's appeal on points of law was also dismissed. The Court of Cassation noted that the Religion Act expressly prohibited the registration of two religious organisations with the same name and the same head office. It noted that the new association was located in Sofia, exactly like the other one, despite the specific indication of a neighbourhood. It lastly found that such registration was only possible on the initiative of the parent organisation, which was not the case here.

Mr Genov argues that the refusal to register the association has entailed a violation of his rights under Articles 9 (freedom of thought, conscience and religion) and 11 (freedom of assembly and association).

[A.-M.V. v. Finland \(no. 53251/13\)](#)

The applicant, A.-M.V., is a Finnish national who was born in 1990. He is intellectually disabled. The case concerns his complaint about the Finnish courts' refusal to replace his court-appointed mentor, meaning that he has been prevented from living in the place of his choice, namely with his former foster family.

A.M.V was taken into public care in 2001 and placed with a foster family. However, in 2007 the child welfare authorities decided to remove him from the family and to place him in a disabled children's home – with one of his brothers – in his home town in southern Finland. This was because the foster parents had made important decisions without consulting the authorities, namely they had moved to a remote village in the far north of Finland and had planned on placing him in a vocational school 300 km away.

In February 2011 a mentor, who had been appointed by a court when A.-M.V. turned 18, took a decision concerning A.-M.V.'s place of residence which, according to him, was against his own will. A.-M.V. wished to move from his home town in the south to live in the north with his former foster parents. His mentor considered, however, that it was in his best interests for him to live in his home town where other members of his family lived and where he had better educational and work opportunities; he could spend holidays with his former foster parents.

A.-M.V. thus brought court proceedings asking to replace the mentor by another person insofar as matters concerning the choice of his place of residence and education were concerned. This request was ultimately refused in 2013 by the domestic courts. Having considered expert testimony (by a psychologist) and having heard A.-M.V. in person as well as several witnesses, they concluded that he was clearly unable to understand the significance of the planned move to a remote part of the country. It notably took into account the level of his intellectual capacity, assessed as equal to that of

a six to nine year old child, and the fact that he had no particular complaints about his current situation in his home town where he lived in a special unit for intellectually disabled adults, went to work, had hobbies and a support network of relatives, friends and staff from the social welfare authorities. Lastly, the courts expressed doubts as to whether his opinion was genuinely his own or his foster parents.

Relying on Article 8 (right to respect for private and family life) and Article 2 of Protocol No. 4 (freedom of movement), A.-M.V. complains that, because of the courts' decisions refusing to replace his mentor, he has been prevented from deciding where and with whom he would like to live.

[Gouri v. France \(no. 41069/11\)](#)

The applicant, Messaouda Gouri, is an Algerian national, who was born in 1952 and lives in Barika (Algeria). The case concerns her request for the payment by France of a supplementary disability allowance.

On 2 July 1999 Ms Gouri was granted a disabled widow's pension backdated to 1 April 1993. On 8 July 2006 she applied for the payment of a supplementary disability allowance with retroactive effect from 1 April 1993. The Loiret Sickness Insurance Department dismissed her application on the ground that she did not satisfy the requirement of residence in France. The Social Security Tribunal upheld that decision, pointing out that the allowance in question was a special non-contributory benefit which meant that it could not be granted to individuals living outside France. The Orleans Court of Appeal upheld the judgment of the Social Security Tribunal. Ms Gouri's appeal on points of law was dismissed.

Relying on Article 14 (prohibition of discrimination) taken together with Article 1 of Protocol No. 1 (protection of property) Ms Gouri argues that the imposition of a residence requirement for receipt of a supplementary disability allowance is discriminatory.

[Wolter and Sarfert v. Germany \(nos. 59752/13 and 66277/13\)](#)

The applicants, Rolf Wolter and Jürgen Sarfert, are German nationals who were born in 1943 and 1940 and live in Cologne and Stuttgart (Germany), respectively. They were both born out of wedlock (to different parents).

Following the death of their natural fathers, the applicants both applied to be recognised as heirs to their fathers' estates. However, the German law applicable at the time stated that children born out of wedlock prior to 1 July 1949 were not entitled to inherit. The German courts therefore rejected the applicants' claims. The applicants appealed – ultimately to the Federal Constitutional Court – which also dismissed the claims. The court noted that, following the judgment of the European Court of Human Rights in the case of *Brauer v. Germany* (no. 3545/04, 28 May 2009), the German legislature had amended the law, so that the difference in inheritance rights between children born outside of marriage before and after 1949 had been set aside in cases where the deceased had died after 28 May 2009. However, where the deceased had died before 28 May 2009, the difference remained in force. As the fathers of both of the applicants had died before the cut-off date, the difference in treatment applied and the applicants were not entitled to inherit. The court held that it was not necessary to apply the legislative change retrospectively before the cut-off date, because of the need to preserve legal certainty.

The applicants complain that the rulings by the German courts meant that they had been discriminated against as children born outside of marriage when compared to children born within marriage. They rely in substance on Article 14 (prohibition of discrimination) taken in conjunction with Article 1 of Protocol No. 1 (protection of property) and Article 14 taken in conjunction with Article 8 (right to respect for private and family life).

Endrizzi v. Italy (no. 71660/14)

The applicant, Pierpaolo Endrizzi, is an Italian national, who was born in 1968 and lives in Caldes. He complains that he has been unable to exercise his contact rights in respect of his son who has been living with his mother in Sicily.

On 11 January 2005 a child was born to Mr Endrizzi and his wife T.L.G.. In July 2005 T.L.G. left home with the child to go and live with her family in Sicily, about 1,000 km away. In July 2007 a judge in Trento declared the couple separated. The parents were given joint custody of the child and the child was to live principally with his mother in Sicily, while the father had very extensive rights of visiting and staying contact. After her separation from Mr Endrizzi, T.L.G. strongly opposed any relations between the father and the child, then aged two. Their dispute was brought before the courts and proceedings are still pending.

Relying on Article 8 (right to respect for private and family life), Mr Endrizzi alleges that there has been a violation of his respect for his family life. He complains that he has been unable to exercise his contact rights since 2007, in spite of a number of judicial decisions. He alleges that the social services used excessive freedom in implementing the court's decisions and that the court did not exercise sufficient scrutiny over their work.

The Court will give its rulings in writing on the following cases, some of which concern issues which have already been submitted to the Court, including excessive length of proceedings.

These rulings can be consulted from the day of their delivery on the Court's online database [HUDOC](#).

They will not appear in the press release issued on that day.

A.T. v. Belgium (no. 40586/16)

Handanović v. Croatia (no. 45646/14)

Shehada v. Croatia (no. 30771/13)

A.M. v. France (no. 33873/14)

Aguirregabiria Del Barrio v. France (no. 21727/16)

Carrera Sarobe v. France (no. 18820/16)

De Tempete v. France (no. 68201/13)

Fernandez Aspurz v. France (no. 22653/16)

Le Pen v. France (no. 45416/16)

Lesaca Arguelles v. France (no. 21722/16)

Petro-M SRL and Rinax-TVR SRL v. the Republic of Moldova (no. 44787/05)

Irzyk v. Poland (no. 58113/09)

Florea and Others v. Romania (nos. 23755/15, 34447/15, 18197/16, and 31506/16)

Kulevskiy v. Russia (no. 72887/12)

M.S.S. v. Russia (no. 32779/15)

Arslan and Bay v. Turkey (nos. 15252/08 and 37864/08)

Aslan v. Turkey (no. 19882/10)

Baloğlu v. Turkey (no. 32400/06)

Ekinci v. Turkey (no. 40365/09)

Fikri Vural v. Turkey (no. 43207/06)

Firat v. Turkey (no. 31539/07)

Huseyinzade v. Turkey (no. 4763/07)

Kılıç v. Turkey (no. 36287/06)

Mehmet Kaplan and Others v. Turkey (no. 35183/08)

Yaprak and Others v. Turkey (nos. 63746/10, 63755/10, 63757/10, 63760/10, 63762/10, 64478/10, 64487/10, 64513/10, 64526/10, 64530/10, 64534/10, 64537/10, 64543/10, 64547/10, 64552/10, 64564/10, 64567/10, 64573/10, 64578/10, 64582/10, 64587/10, 64591/10, 64599/10, 64606/10, 64615/10, and 64630/10)

Sayenko and Others v. Ukraine (nos. 39167/08, 39170/09, 8365/10, 23654/10, and 35124/11)
Shust and Sidorenko v. Ukraine (nos. 41385/06 and 56391/11)

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The European Court of Human Rights was set up in Strasbourg by the Council of Europe Member States in 1959 to deal with alleged violations of the 1950 European Convention on Human Rights.